

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA  
**CIVIL DIVISION**

COLONIAL MANOR MHC  
HOLDINGS, LLC,  
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY  
UNKNOWN PARTY(s) IN POSSESSION.  
Defendants.

---

**MOTION FOR FINAL JUDGMENT FOR  
DAMAGES AND JUDICIAL SALE**

**COMES NOW**, the Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLC., d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, moves this Court to grant final judgment against Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff brought an action against the Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, seeking eviction, damages and enforcement of a landlord lien and for judicial sale of the premises to satisfy the Plaintiff's landlord lien.
2. Defendant, GREGORY DOUGLAS BURKETT, filed an answer on April 21, 2023, however, he failed to deposit any money into the Registry of the Court.
3. Plaintiff is entitled to a judgment on all well pled allegations of its complaint, and to accept such evidence at the Final Hearing.
4. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as Exhibit A, Defendants are indebted to Plaintiff in the sum of \$6,268.8 which sum includes rent, late rent fees, water/sewer fees and late fees for failure to pay for water and sewer.

6. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property in the possession of the Plaintiff.

7. By virtue of this lien, Plaintiff is entitled to a judicial sale of personal property located on Lot 214 of Colonial Mobile Manor, that is, *1978 MAUVE UNKNOWN MAKE UNKNOWN MODEL double wide mobile home, VIN# 5266A; Title #0015425527 and VIN# 5266B; Title #0015425528.*

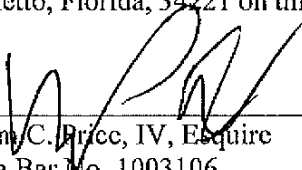
8. The record owner of this mobile home is GREGORY DOUGLAS BURKETT.

9. Pursuant to Fla. Statutes §723.0861 Plaintiff is entitled to an award of attorney's fees by virtue of prevailing in an action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff has or will expend the sum of \$2,880.00 in attorney's fees and \$905.05 for costs expended and anticipated to be expended as a result of the Court's Order for a Judicial Sale of the mobile home located on Plaintiff's premises, as evidenced by the Affidavit of Time and Costs Expended attached as Exhibit B. The Affidavit of Attorney Fees is attached as Exhibit C.

**WHEREFORE**, Plaintiff moves this Court for judgment against Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, for damages, costs, attorney's fees and an order for a judicial sale of the mobile home which is referred to in this Complaint.

#### **CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Motion for Final Judgment for Eviction, Damages and Judicial Sale has been furnished to the Defendants, GREGORY DOUGLAS BURKETT at 14470 Harlee Road, Palmetto, FL 34221 and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #214, Palmetto, Florida, 34221 on this 12 day of July, 2023.

  
\_\_\_\_\_  
William C. Price, IV, Esquire  
Florida Bar No. 1003106  
WILLIAM C. PRICE, III, P.A.  
522 Twelfth Street West  
Bradenton, Florida 34205  
Telephone: (941) 747-8001  
Facsimile: (941) 747-3730  
Pleadings@wcprielaw.com  
Attorney for Plaintiff